

		because of the substantial likelihood the jury will use it for an illegitimate purpose.” ’ ’ (People v. Scott (2011) 52 Cal.4th 452, 491.) In striking the balance between the probative and the unduly prejudicial, the court “should allow evidence and argument on emotional though relevant subjects that could provide legitimate reasons to sway the jury.... On the other hand, irrelevant information or inflammatory rhetoric that diverts the jury’s attention from its proper role or invites an irrational, purely subjective response should be curtailed.” (People v. Haskett (1982) 30 Cal.3d 841, 864.) Here, Kangas’s criminal case comments are relevant and should not be excluded. (People v. Lamb (2024) 16 Cal.5th 400, 425 [“Evidence Code section 352 speaks in terms of <i>undue</i> prejudice. Unless the dangers of undue prejudice, confusion, or time consumption substantially outweigh the probative value of relevant evidence, a[n] [Evidence Code] section 352 objection should fail.”] [internal quotation marks and citations omitted].) The court reserves its discretion to include a limiting instruction. Plaintiffs to give notice.
59	Holler vs The Horizons Community Association 21-01222398	Motion for Summary Judgment and/or Adjudication CONTINUED TO JUNE 4, 2026, AT 10:00 AM
60	Hernandez vs. Sol Acceptance, LLC 22-01277715	Motion for Summary Judgment and/or Adjudication OFF CALENDAR due to the filing of the Notice of Settlement on 5/21/2026, ROA 222